

The court recommends that future stipulations to settle include a notice of appearance by defendant with defendant's contact information or that the stipulation include language confirming defendant's appearance and notice that a defendant has a duty to keep the court informed of any changes in his or her contact information.

JEMERSON v. LIGHTHOUSE AT BRIDGEPORT OWNERS ASSN.

Case No. CU24-08429

Motion for Leave to File Amended Answer

TENTATIVE RULING:

The unopposed motion for leave to file a first amended answer is granted. Defendant shall file and serve the first amended answer as proposed within 10 days.

POLLARD, ET AL. v. SEABREEZE APARTMENTS VALLEJO, LP, ET AL.

Case No. CU26-01862

Demurrer

TENTATIVE RULING:

Defendant FPI Management, Inc.'s demurrer is sustained without leave to amend.

An agent acting on behalf of a disclosed landlord is not liable for breach of the implied warranty of habitability. (*Stoiber v. Honeychuck* (1980) 101 Cal.App.3d 903, 929.) Likewise, a claim of breach of the implied covenant of quiet enjoyment is a contract claim. (*Ginsberg v. Gamson* (2012) 205 Cal.App.4th 873, 896.) And, the statutory duty to provide a tenant with an itemized statement of the security received and the disposition of the security and to return any remaining portion of the security to the tenant is imposed on the **landlord**. (Civ. Code § 1950.5(h)(1).) A **landlord** is defined as "an owner of residential rental property". (See, Civ. Code §§ 1940.8.5(a)(5), 1950.6(h), 1954.202(b).)

Plaintiff's first two causes of action allege breach of the warranty of habitability. Plaintiff's third cause of action alleges breach of the implied covenant of quiet enjoyment. Plaintiff's sixth cause of action alleges a violation of Civil Code section 1950.5. None of these causes of action can be alleged against Defendant FPI Management, Inc.

Plaintiffs alleged that Defendant Seabreeze Apartments Vallejo, LP "is and was at all relevant times ... owned ... the subject Property and entered into a residential lease with the Plaintiff Emerald Pollard". (Complaint, ¶ C.) Plaintiffs alleged that Defendant FPI Management, Inc. "managed and/or controlled and/or acted as the agent for the owner of the subject Property". (Complaint, ¶ D.) The copy of the lease agreement attached to the agreement specifies the owner of the rental property as Defendant Seabreeze Apartments Vallejo, LP and identifies FPI Management, Inc. as "Agent".

(Complaint, Exh. 1.) The signature line on the lease agreement clearly designates that Defendant's employee is executing the document "By FPI Management Inc., on behalf of, and as designated agent for, Owner". (*Ibid.*)

Additionally, Plaintiffs' fourth cause of action for private nuisance is duplicative of their fifth cause of action for general negligence, alleging the same wrongful conduct caused the same injuries. While a claim of nuisance need not be identical to negligence just because it relies on the same facts about lack of due care (*Lynch v. Peter & Assocs., Eng'rs, Geologists, Surveyors, Inc.* (2024) 104 Cal.App.5th 1181, 1198), a comparison of Plaintiffs' nuisance cause of action to their negligence cause of action shows no material difference in fact or theory. A demurrer may properly be sustained if a cause of action in a pleading is entirely duplicative. (*Award Metals, Inc. v. Superior Court* (1991) 228 Cal.App.3d 1128, 1135.)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca-gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>

Meeting ID: 161 970 4645

Passcode: 675002